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SUPERIOR COURT FOR THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

ALLIANCE FOR CONSTITUTIONAL SEX OFFENSE LAWS, INC., a California non-profit corporation; CHRISTOPHER SANDAHL, an individual; JOSHUA MORALES, an individual; ALEXANDER FLORES, an individual; JOHN DOE #1, an individual; and JOHN DOE #2, an individual,

Petitioners,

vs.

JEFF MACOMBER, in his official capacity as Secretary of the California Department of Corrections and Rehabilitation,

Respondent.

Case No.: 23STCP02378

PETITION FOR WRIT OF MANDATE AND COMPLAINT FOR DECLARATORY RELIEF

INTRODUCTION

1. This action challenges certain regulations, policies, and practices of the California Department of Corrections and Rehabilitation, Division of Adult Parole Operations ("**CDCR**"), regarding its supervision of parolees who are required to register as a sex offender pursuant to Penal Code section 290, *et seq*. ("**Registrants**"). As pleaded more fully below, CDCR's regulations, policies, and practices are inconsistent with and in conflict with state law governing the supervision

of Registrants on parole. Specifically, CDCR's regulations, policies, and practices are inconsistent with and in conflict with the statutory requirements of the "Containment Model" of parole supervision codified in Penal Code section 3008, subds. (d)(1)-(d)(4), and related statutes (hereinafter, "**Section 3008(d)**").

2. Effective July 1, 2012, Section 3008(d) requires each Registrant on parole to "successfully complete **a** sex offender management program . . . as a condition of parole." (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.) This management program includes two main components: (1) a psychological counseling and treatment program, and (2) periodic polygraph examinations to verify compliance with parole conditions and other matters incident to supervision or treatment. (*Id.* § 3008, subd. (d)(3); § 9003.)

3. Critically, the Legislature did not intend a Registrant's participation in either component of the management program to be indefinite. Nor did the Legislature intend a Registrant's participation in the management program to be for the entire length of parole in all cases. To the contrary, the Legislature declared that "the length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court." (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.) In other words, Section 3008(d) requires CDCR to provide Registrants the opportunity to "complete," and thereby terminate their participation in, the management program as early as one year after placement on parole.

4. Yet, as pleaded below, CDCR has defied this statutory mandate by requiring all Registrants to remain in a management program for the entire duration of their parole term. In many cases, Registrants are retained in the management program long after completing all requirements of the treatment curriculum, and long after the Registrant's rehabilitative progress and demonstrably low risk of re-offense render treatment unnecessary. In fact, paradoxically, some Registrants who are eligible for early discharge from parole are denied early discharge due to their participation in a management program that CDCR will not let them terminate prior to discharge from parole.

5. By refusing to allow Registrants to complete and terminate their participation in the management program prior to discharge from parole, CDCR has vitiated the discretion that Section

3008(d) requires CDCR to exercise concerning each individual Registrant In so doing, CDCR is contradicting the clear language of Section 3008(d), and thus unlawfully impairing the scope of, Section 3008(d) and the Containment Model it codifies.

6. For these and the other reasons pleaded below, Petitioners respectfully seek a writ of mandate directing CDCR to amend its regulations to authorize completion of and termination from the sex offender management program prior to discharge from parole. Petitioner also seeks a judgment declaring that Section 3008(d) requires CDCR to evaluate individual parolees on a case-by-case basis for eligibility to terminate their sex offender management program while on parole.

JURISDICTION AND VENUE

7. As a court of unlimited jurisdiction, the Los Angeles County Superior Court has jurisdiction over this action for mandamus, declaratory, and injunctive relief pursuant to California Code of Civil Procedure sections 1084, *et seq*. and 1060, as well as California Government Code section 11350(a).

8. Venue is proper within the Los Angeles County Superior Court pursuant to California Code of Civil Procedure section 395.

PARTIES

9. Petitioner realleges and incorporates herein, as though fully set forth, all and inclusively, paragraphs 1 through 8.

10. Petitioner Alliance for Constitutional Sex Offense Laws, Inc. ("**Alliance**") is a non-profit corporation incorporated and headquartered in Los Angeles County, California. Alliance is dedicated to protecting the Constitution by restoring the civil rights of more than 100,000 Registrants in the State of California through advocacy, education, and litigation on behalf of them and their families. Alliance is beneficially interested in the outcome of these proceedings, as well as in CDCR's performance of its legal duties, and therefore seeks by this Petition to procure the enforcement of a public duty on a question of public right. Additionally, Alliance's membership includes individuals, including the Individual Petitioners herein, who are currently serving terms of parole in California and who are required to participate in a sex offender management program pursuant to Penal Code section 3008(d). Alliance is therefore an "interested person" for the

purposes of California Government Code section 11350(a), and has standing to seek mandamus relief under the doctrine of public interest standing. (*E.g.*, *Friends of Ocean Dunes, Inc. v. San Luis Obispo County Air Pollution Control Dist.* (2015) 235 Cal. App. 4th 957, 960, 962 [affirming trial court's ruling that a "California nonprofit corporation and voluntary association" had standing to challenge agency action that affected individuals that petitioner purported to speak for]; *Weiss v. City of Los Angeles* (2013) 2 Cal. App. 5th 194, 205-06 [same].)

11. Petitioner Christopher Sandahl is an individual residing in San Bernardino County, California, who is currently serving a 10-year term of parole supervised by CDCR. Petitioner Sandahl is currently required to participate in a sex offender management program pursuant to Section 3008(d) in San Bernardino County.

12. Petitioner Joshua Morales is an individual residing in Imperial County, California, who is currently serving a 5-year term of parole supervised by CDCR. Petitioner Morales is currently required to participate in a sex offender management program pursuant to Section 3008(d) in Riverside County.

13. Petitioner Alexander Flores is an individual residing in San Diego County, California, who is currently serving a 10-year term of parole supervised by CDCR. Petitioner Flores is currently required to participate in a sex offender management program pursuant to Section 3008(d) in San Diego County.

14. Petitioner John Doe #1 is an individual residing in Los Angeles County, California, who is currently serving a 10-year term of parole supervised by CDCR. Petitioner John Doe #1 is currently required to participate in a sex offender management program pursuant to Section 3008(d) in Los Angeles County.

15. Petitioner John Doe #2 is an individual residing in Ventura County, California, who is currently serving a 10-year term of parole supervised by CDCR. Petitioner John Doe #2 is currently required to participate in a sex offender management program pursuant to Section 3008(d) in Ventura County.

16. Petitioners Christopher Sandahl, Joshua Morales, Alexander Flores, John Doe #1, and John Doe #2 shall be referred to herein collectively as the "Individual Petitioners."

17. The Individual Petitioners in this action are "interested persons" for the purposes of California Government Code section 11350(a), and have standing to seek mandamus relief and declaratory relief. (*Rialto Citizens v. City of Rialto* (2012) 208 Cal. App. 4th 899, 912-914.)

18. Respondent Jeff Macomber ("**Macomber**") is the Secretary of CDCR. Petitioners are informed and believe and thereon allege that Secretary Macomber is responsible for drafting, issuing, and enforcing the Regulations that are the subject of this Petition, with ultimate responsibility for ensuring CDCR's compliance with its legal duties. Secretary Macomber is sued in his official capacity.

FACTUAL ALLEGATIONS

19. Petitioners reallege and incorporate herein, as though fully set forth, each and every, all and inclusively, paragraphs 1 through 18.

Chelsea's Law and Development of the Containment Model

20. Since July 1, 2012, Registrants on parole are supervised pursuant to the Containment Model, which is codified in Section 3008(d) and related statutes. The Containment Model is the product of reforms enacted through the Chelsea King Child Predator Prevention Act of 2010, known as "Chelsea's Law." (Stats. 2010, ch. 219, A.B. 1844 (2009-2010 Reg. Sess. See also *People v. Douglas M.* (2013) 220 Cal. App. 4th 1068, 1076.)

21. The Containment Model sought to establish "a unified strategy" for the supervision of Registrants on post-conviction supervision statewide, rather than the "patchwork of management strategies" that had previously existed in California's 58 counties. (*People v. Garcia* (2017) 2 Cal. 5th 792, 800-01.) The Containment Model incorporates uniform "best practice for community supervision of sex offenders" pursuant to recommendations from the California Sex Offender Management Board (CASOMB), the entity charged with setting policy and practice for the supervision of Registrants in California. (*Ibid*. See also Cal. Penal Code § 9002.)

22. As the California Supreme Court has explained, "the Containment Model adopted by the Legislature depends on three interrelated elements: **[1]** supervision and monitoring of the sex offender while on [parole]; **[2]** sex offender-specific assessment and treatment; and **[3]** the use of static, dynamic, and future assessments of the risk of reoffending, including the State Authorized

Risk Assessment Tool for Sex Offenders (SARATSO)." (*Garcia*, *supra*, 2 Cal. 5th at pp. 800-01.) Thus, the Containment Model requires cooperation by three actors: a supervising agent, a treatment provider, and a polygraph examiner. "A major premise of the model is that the mental health professional, [supervising] officer, and polygraph examiner will work together closely to assess the offender's compliance with, and participation in, the treatment program as well as the offender's risk of reoffending." (*Id.* at p. 801.)[1]

23. This Petition concerns the second element of the Containment Model, that is, the program for "sex-offender specific assessment and treatment," which includes both a therapeutic treatment curriculum and periodic polygraph examinations. (Cal. Penal Code § 3008, subd. (d)(1)-(d)(2).) Because of its breadth and detail, the Legislature provided CASOMB and CDCR approximately two years to develop the treatment component of the Containment Model. Section 23 of Chelsea's Law, now codified in Penal Code section 9003, directed CASOMB to develop standards for the program, as well as a method for certifying the individual third-party treatment programs and treatment providers that would implement the program throughout the state. Penal Code section 9003 states as follows:

> (a) On or before July 1, 2011, the board shall develop and update standards for certification of sex offender management professionals. All those professionals who provide sex offender management programs and risk assessments, pursuant to Section 290.09, shall be certified by the board according to these standards. The standards shall be published on the board's Internet Web site. Professionals may apply to the board for certification on or after August 1, 2011.
>
> . . . .
>
> (b) On or before July 1, 2011, the board shall develop and update standards for certification of sex offender management programs, which shall include treatment, as specified, and dynamic and future violence risk assessments pursuant to Section 290.09. The standards shall be published on the board's Internet Web site. All those programs shall include polygraph examinations by a certified polygraph examiner, which shall be conducted as needed during the period that the offender is in the sex offender management program. Only certified sex offender management professionals whose programs meet the standards set by the board are eligible to

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[1] *People v. Garcia* and other opinions addressing the Containment Model discuss its parameters in the context of probation supervision, rather than parole. Their reasoning applies to parole, however, because the Containment Model governs the supervision of Registrants in both contexts, and the statutes implementing the Containment Model in both contexts are substantively identical. (*Compare* Penal Code § 3008, subd. (d) [parole] *with id.* § 1203.067, subd. (b) [probation].)

provide sex offender management programs pursuant to Section 290.09.

(Stats. 2010, c. 219 (A.B.1844), § 23, eff. Sept. 9, 2010, codified at Penal Code § 9003.)

24. Related, Penal Code section 290.09, enacted pursuant to Chelsea's Law, further states:

> The sex offender management program shall meet the certification requirements developed by the California Sex Offender Management Board pursuant to Section 9003. Probation departments and the Department of Corrections and Rehabilitation shall not employ or contract with, and shall not allow a sex offender to employ or contract with, any individual or entity to provide sex offender evaluation or treatment services pursuant to this section unless the sex offender evaluation or treatment services to be provided by the individual or entity conforms with the standards developed pursuant to Section 9003.

(Stats. 2010, c. 219 (A.B.1844), § 13, eff. Sept. 9, 2010, codified at Penal Code § 290.09, subd. (a)(2).)

The Containment Model Requires Registrants on Supervision to Participate in a Management Program for At Least One Year, but Not the Entire Term of Supervision

25. The Containment Model took effect on July 1, 2012, and all Registrants on parole became subject to it on that date. State law now provides that "Every sex offender required to register pursuant to Sections 290 to 290.023, inclusive, shall, while on parole . . ., participate in an approved sex offender management program, pursuant to Section [] 3008." (Penal Code § 290.09.) Section 3008(d) expressly requires participation in a sex offender management program as a condition of parole, and specifies the length of participation in the program, as follows:

> On or after July 1, 2012, the parole conditions of a person released on parole for an offense that requires registration pursuant to Sections 290 to 290.023, inclusive, shall include all of the following: . . . .
>
> (2) Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. **The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court.** Participation in this program applies to every person described without regard to when his or her crime or crimes were committed.

(Penal Code § 3008, subd. (d)(1)-(d)(2), emphasis added.)

26. Therefore, as codified in Section 3008(d), the duration of the management program is a minimum of one year, and up to the entire period of parole, if warranted. The management

program, however, is not required in all cases to extend for the entire period of parole. Indeed, the Containment Model requires CDCR and individual treatment providers to exercise discretion in determining the length of time an individual Registrant remains in a management program. In other words, Section 3008(d) requires that individual Registrants have an opportunity to "complete" the management program, and thereupon be terminated from it, prior to their discharge from parole.

The Containment Model in Practice

27. Upon information and belief, the management program called for by the Containment Model involves successive phases that require progressively less participation over time. When first released on parole, a Registrant is assessed using SARATSO-approved risk assessment instruments and assigned a particular treatment plan by the treatment provider, in consultation with parole authorities.

28. Upon information and belief, a Registrant's initial involvement in the management program is time intensive. A typical Registrant newly released on parole must participate in a weekly group therapy session in which curriculum is discussed and completed, plus separate individual counseling sessions that do not involve curriculum. Upon information and belief, the Registrant also participates in polygraph examinations to verify compliance with the treatment program as well as other conditions of parole. Upon information and belief, the polygraph examinations are administered under the supervision of the treatment provider.

29. Upon information and belief, as a Registrant progresses through and completes the curriculum-based group treatment phase of the management program, and otherwise achieves treatment goals, a Registrant is eligible to transition to phases of treatment that require less frequent group and/or individual sessions. Upon information and belief, these latter phases are usually called "maintenance" or "after care," consistent with having completed the treatment curriculum and needing only "maintenance" of the progress achieved. Upon information and belief, in most if not all treatment programs, the post-curriculum "maintenance" or "after care" phases involve materially less frequent group and/or individual sessions than the earlier curriculum-based treatment phases. Maintenance and aftercare phases can be as infrequent as one quarterly individual meeting with a therapist.

30. Upon information and belief, both Registrants and public safety benefit when a Registrant timely completes the treatment curriculum and reduces his or her participation in the management program. For example, upon information and belief, maintaining a regular employment schedule while on parole can be difficult when the group and/or individual treatment sessions occur on weekdays during business hours. Individual Registrants are often compelled to miss work, or forego certain employment entirely, if their work schedules do not allow participation in the management program. In contrast, Registrants who progress through the program and whose attendance requirements are correspondingly reduced have additional time to pursue employment opportunities, education, or other positive goals correlated with rehabilitation.

CDCR Regulations, Policy, and Practice Do Not Allow Registrants to Complete and Discontinue the Management Program Prior to Discharge from Parole

31. As noted above, the Legislature did not intend the management program for Registrants to endure for the entire duration of parole in every case. To the contrary, Section 3008 expressly contemplates that the management program can be "completed" prior to discharge of parole, and that its duration can be as short as "one year."

32. The only CDCR regulation that expressly implements Section 3008 and the management program it requires as a condition of parole is Title 15, Section 3573, of the Code of Regulations. Section 3573 provides that:

> The Department shall conduct on-going supplemental risk assessments pursuant to sections 3573(d) and (e), which are used for designing treatment programs and determining supervision levels for sex offenders during their parole terms at the direction of the Director of CDCR or their designee. These assessments are not for use in determining whether an offender qualifies as a HRSO, but rather to determine the frequency of treatment and the level of supervision needed for monitoring the sex offender while in the community.

(15 C.C.R. § 3573, subd. (c).) Notably, no provision of Section 3573 or any other regulation allows for the "completion" of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates.

33. Notably, the Operations Manual for CDCR's Division of Adult Parole Operations confirms that Registrants are retained in the management program for the duration of their parole term, regardless of whether continued participation is necessary. Section 81022 of the Operations Manual states:

> Pursuant to PC Section 3008, CDCR must implement a sex offender parolee management and containment program developed in accordance with the standards established under PC Section 9003. SOMP is a comprehensive program consisting of enhanced supervision; sex offender parolee specific treatment; polygraph use; and victim advocacy, **and is intended for the management of all parolees required to register with law enforcement, pursuant to PC Section 290**.
>
> **All offenders under CDCR supervision convicted of a crime requiring registration under the Sex Offender Registration Act codified in PC Section 290 et seq., shall be supervised in accordance with the SOMP policy**. Parole agents assigned to a specialized sex offender parolee caseload shall receive SOMP training prior to the assignment of sex offender parolee cases.

(DAPO Operations Manual § 81022, emphasis added.)

34. Further, upon information and belief, as a matter of policy and practice, CDCR does not permit any Registrant to "complete" the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense.

CDCR Agents and Officials Testified in Court Proceedings that CDCR Retains All Registrants in a Sex Offender Management Program for the Duration of Parole

35. CDCR recently confirmed its policy in the habeas corpus proceeding captioned *In re Frederick Dwyer* (See Exh. A, Order dated March 20, 2023 in San Mateo Co. Super. Ct. Case No. SC-080355A, HC-3020). In that litigation, the Registrant had been convicted in San Mateo County and, in 2017, was released on parole in Alameda County. (Exh. A, at p. 2.) At that time, the parole authorities in Alameda County contracted with the "Shaping Success" company as their contract treatment provider. (Exh. A, at p. 3.) As required by Section 3008(d), the Registrant attended and participated in weekly curriculum-based group sessions lasting 1.5 hours for nearly three years

between March 2018 and January 2021. (Exh. A, at p. 3.) In addition to the weekly therapeutic sessions, the Shaping Success program curriculum required extensive written work product, including a Relapse Prevention Plan, which the Registrant submitted. The Registrant also continued to undergo polygraph examinations. (Exh. A, at p. 3.)

36. In January 2021, the Registrant's treatment provider, Shaping Success, confirmed his completion of the curriculum and approved his transition to the maintenance phase of the program. (Exh. A, at p. 3.) The maintenance phase required the Registrant to appear only for individual counseling once per month, and eliminated Petitioner's weekly group sessions. (Exh. A, at p. 3.)

37. The Registrant took advantage of the reduced attendance requirement to achieve professional certifications, complete a union apprenticeship program, and to undertake the additional hours needed to earn a promotion at his job. The Registrant could not have achieved these goals with the initial schedule required during his first three years in the management program.

38. Shortly after the Registrant's transition to maintenance, however, in 2021, CDCR informed him that Shaping Success had been replaced with a new contract treatment provider, the HOPE Program. (Exh. A, at p. 4.) The Registrant was told that he was required to begin the treatment curriculum anew with the HOPE Program because the HOPE Program was unwilling to rely upon the prior treatment provider's work, despite Shaping Success being CASOMB-certified, and despite his completion of the program being confirmed by both his prior treatment provider and his parole agent. (See Exh. A, at p. 10 & n.1.)

39. The Registrant challenged the requirement to repeat the treatment curriculum in a petition for writ of habeas corpus, invoking the Court's discretionary authority to terminate a sex offender management program after one year pursuant to Section 3008. The Court held an evidentiary hearing at which it found that the sole basis for retaining the Registrant in the management program was CDCR's policy of requiring all Registrants to participate in the program for the duration of parole, regardless of their individual treatment needs. (Exh. A, at p. 10.) CDCR agents including the Registrant's individual parole agent, as well the parole administrator for the East Bay District (Alameda and Contra Costa County), confirmed that policy in response to the Court's inquiry:

> [THE COURT:] Have you ever during the time that you have been in the positions that you have described were responsible to 290 registrants seen a participant in a sex offender management program complete such a program prior tot termination or discharge from parole?
>
> THE [CDCR] WITNESS: No.
>
> THE COURT: Is it essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program . . . ?
>
> THE [CDCR] WITNESS: Yes.

(Transcript of Hearing on February 9, 2023 in *In re Dwyer*, (San Mateo Co. Super. Ct. Case No. SC-080355A, HC-3020). See also Order, Exh. A, at pp. 6-7 ["[A former East Bay region supervisor from CDCR] testified that it is the policy of the California Department of Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge 3 from parole."].)

40. The San Mateo County Superior Court ruled that CDCR's refusal to exercise its discretion in connection with the Registrant's length of participation in a sex offender management program "vitiates the Legislature's directive" set forth in Section 3008, as follows:

> Penal Code§ 3008(d)(2) fixes the length of a sex offender management program as no less than one year and up to the entire period of parole "as determined by the sex offender management professional in consultation with the parole officer and as approved by the court." The evidence in this case demonstrates that the "consultation" contemplated by the statute between the sex offender management professional and parole in this case worked only one way – the program told parole what was required and parole deferred. . . .
>
> Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully "complete" a sex offender management treatment program short of being discharged from parole. The discretion conferred by statute on the Division of Adult Parole Operations and this CASOMB provider is apparently being exercised in all cases to require participation in a sex offender management program for the entire term of parole, apparently without reference to the individualized performance of each parolee. Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and "up to" the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole.

(Exh. A, at pp. 10:6-11:7.)

41. Accordingly, the San Mateo County Superior Court exercised its discretion under Section 3008 and terminated the Registrant's participation in the sex offender management program,

including the polygraph examinations, for the following reasons:

> The Legislature's guidance on the purpose of parole is as follows:
>
> > [T]he period immediately following incarceration is critical to successful reintegration of the offender into society and to positive citizenship. It is in the interest of public safety for the state to provide for the effective supervision of and surveillance of parolees, including the judicious use of revocation actions, and to provide educational, vocational, family, and personal counseling necessary to assist parolees in the transition between imprisonment and discharge. Penal Code § 3000(a)(1).
>
> In this case, the undisputed evidence establishes that Petitioner is meeting the goals of successful reintegration into society. . . . His performance on parole for at least the last three years has been so positive that his supervising parole officer has recommended his complete discharge from parole supervision, and that recommendation was approved for submission to the Board by multiple supervisory layers of parole administration. . . . His continued engagement in the HOPE program does not serve to "assist [Petitioner] in the transition between imprisonment and discharge", since his parole agent and that agent's supervisors have apparently determined that he is ready for a recommended earned discharge.

(Exh. A, at pp. 11:12-12:12.)

The Individual Petitioners in this Action

42. Upon information and belief, CDCR continues to "vitiate" the Legislature's directive in Section 3008(d) by retaining all Registrants on parole in California in a management program for the duration of parole. Upon information and belief, as of June 7, 2023, there were 6,821 Registrants on parole in California, and who are therefore subject to the management program required by Section 3008(d).[2]

43. The Individual Petitioners in this action reside in five different counties, and fairly represent parolees throughout the state. Some of the Individual Petitioners have been retained in the initial phases of treatment indefinitely, subject to repetition of the same treatment curriculum, regardless of their progress and demonstrably low risk of re-offense. Other Individual Petitioners have completed the curriculum-based treatment phases and have transitioned to "maintenance" phases of treatment, where they have maintained minimal contact with the treatment provider for substantial periods. Yet, they are retained in the management program indefinitely rather than evaluated for termination

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[2] Figure disclosed by a CDCR representative during a public meeting of the California Sex Offender Management Board, June 15, 2023.

from the program, as Section 3008(d) contemplates.

Petitioner Christopher Sandahl

44. Petitioner Christopher Sandahl is currently serving a 10-year term of parole supervised by CDCR in San Bernardino County. Petitioner Sandahl was released from custody in Riverside County on or about October 5, 2014, whereupon he began a sex offender management program in Riverside County with Sharper Future, a contract treatment provider. Shortly thereafter, Petitioner Sandahl enrolled in a vocational training program in San Bernardino and transferred his parole supervision to that county. After his transfer, Petitioner Sandahl immediately resumed the management program with a treatment provider called Open Door in the City of Colton in San Bernardino County. Open Door required Petitioner Sandahl to attend weekly curriculum-based group meetings, as well as individual counseling sessions at different intervals, along with periodic polygraph examinations. Open Door has required Petitioner Sandahl to maintain this same schedule without adjustment for the past eight years. Petitioner Sandahl has repeated the full treatment curriculum with Open Door at least three times, but has never been approved for transition to a maintenance phase of treatment, or any correspondingly reduced treatment schedule. Petitioner Sandahl has missed only two group sessions during those eight years, each time with the approval of his parole agent.

Petitioner Joshua Morales

45. Petitioner Joshua Morales is currently serving a 5-year term of parole supervised by CDCR in Imperial County. Petitioner Morales's term of parole began on September 24, 2018, when he was released to Riverside County. In or about October 2018, Petitioner Morales began a management program with the treatment provider Sharper Future in Riverside County, which included weekly curriculum-based group treatment sessions, monthly individual sessions, and periodic polygraph examinations.

46. In or about January 2020, a representative from Sharper Future told Petitioner Morales and all members of his treatment group that Registrants can earn transition to the maintenance phase of the program by completing the treatment curriculum. The maintenance phase was said to require, at the start, group sessions twice per month (plus individual sessions and polygraph exams), but would

ultimately require only one monthly group session (plus individual sessions and polygraph exams). Petitioner Morales diligently pursued completion of the treatment curriculum. However, despite his repeated requests, Petitioner Morales was never transitioned to the maintenance phase of the program that year (2020).

47. In or about January 2021, Petitioner Morales moved to Imperial County, where he continued to participate in the Sharper Future program at the same intervals required when he was newly released on parole (*i.e.*, weekly group sessions, monthly individual sessions, and period polygraph examinations). Petitioner Morales's new parole agent in Imperial County inquired why he had not yet transitioned to maintenance. The new parole agent suggested that Petitioner Morales enroll in a different management program in San Diego County, the HOPE Program, based upon the parole agent's expectation that the HOPE Program would facilitate Petitioner Morales's transition to maintenance more quickly. Petitioner Morales accepted this offer and enrolled with the HOPE Program in Chula Vista in early 2021.

48. The HOPE Program in Chula Vista required Petitioner Morales to participate in weekly curriculum-based group treatment sessions (along with monthly individual sessions and polygraph exams) for one year before being transitioned to the maintenance phase. Petitioner Morales commenced this schedule. However, a few months later, Petitioner Morales suffered a serious car accident while en route to a polygraph examination in Chula Vista, 2.5 hours from his residence in Imperial County. Reluctant to continue making that drive, Petitioner Morales requested permission to resume the Sharper Future program in Riverside County, which was granted. After that transfer, Petitioner Morales was required to resume participation in the Sharper Future program at the same interval as when he first joined that program.

49. Some months later, in August 2022, Sharper Future informed Petitioner Morales that he was approved for transition to the maintenance phase of the program. However, despite the above-referenced representations by Sharper Future, the maintenance phase requires precisely the same schedule that newly enrolled Registrants must attend (weekly curriculum-based group treatment session, plus monthly individual sessions and periodic polygraph examinations). In other words, Petitioner Morales's transition to maintenance was a nominal transition only, with no substantive

impact on his level of participation or program requirements.

50. In September 2022, Petitioner Morale's parole agent and unit supervisor recommended his early discharge from parole. This recommendation was based upon Petitioner Morales having "completed sex offender treatment" by virtue of "being in the maintenance phase of Sex Offender Treatment," as well as Petitioner Morales's STATIC-99R risk assessment score of "zero." Yet, on December 20, 2022, the Board of Parole Hearings denied Petitioner Morales early discharge from parole based in part upon his "continued Sex Offender Treatment under the Maintenance Phase." In other words, CDCR denied Petitioner Morales early discharge from parole based because of his continued participation in the sex offender management program that CDCR will not let him complete or terminate prior to discharge.

Petitioner Alexander Flores

51. Petitioner Alexander Flores is currently serving a 10-year term of parole supervised by CDCR in San Diego County. Petitioner Flores was released and began his term of parole in March 2019. Upon release, in or about March 2019, Petitioner Flores began a management program with the HOPE Program, which required curriculum-based treatment group sessions once per week, plus monthly individual sessions and periodic polygraph examinations. In January 2022, Petitioner Flores transitioned to a curriculum-based "maintenance group" with sessions twice per month, along with monthly individual sessions and periodic polygraph examinations, which has remained Petitioner Flores's schedule between January 2022 and the present.

52. The curriculum in the maintenance group sessions that Mr. Flores attends is similar or identical to the curriculum in the previous treatment group sessions. Treatment providers with the HOPE Program have told Petitioner Flores that Registrants are eligible to transition to monthly group sessions, but he has not been permitted to transition, nor is he aware of any other Registrant who has done so. Treatment providers with the HOPE Program have also told Petitioner Flores that Registrants are never terminated from group or individual treatment sessions, or polygraph examinations, while they are on parole.

53. Notably, the HOPE Program has confirmed, in writing, that Petitioner Flores occupies "low risk" and "below average risk" categories on its assessment instruments, based upon factors that

include a SARATSO risk assessment score, his participation in treatment, continued employment, and other dynamic factors indicating stability and trustworthiness.

Petitioner John Doe #1

54. Petitioner John Doe #1 is currently serving a 10-year term of parole supervised by CDCR in Los Angeles County. Upon his release in 2019, Petitioner John Doe #1 began a sex offender management program with Sharper Future in Los Angeles County, and was required to attend weekly curriculum-based group sessions, as well as monthly individual treatment sessions and periodic polygraph examinations. Petitioner John Doe #1 finished the curriculum phase of the management program in November 2021 and was told of his eligibility to "step down" to the maintenance phase. Despite these statements, Petitioner John Doe #1 was not transitioned to the maintenance phase until April 2022. Currently, Petitioner John Doe #1 attends no group meetings, and attends individual sessions once every three months, along with periodic polygraph examinations.

Petitioner John Doe #2

55. Petitioner John Doe #2 is currently serving a 10-year term of parole supervised by CDCR in Ventura County. Petitioner John Doe #2 was released on parole in 2017, whereupon Petitioner John Doe #2 attended weekly curriculum-based group treatment sessions, plus periodic individual sessions and polygraph examinations. In mid-2020, Petitioner John Doe #2 completed the treatment curriculum and transitioned to an "aftercare" phase, which requires monthly group sessions, and no individual sessions, and periodic polygraph examinations. Petitioner John Doe #2 has maintained this schedule since mid-2022. Petitioner John Doe #2's parole agent has told him that he occupies the lowest possible supervision level per CDCR's regulations.

FIRST CLAIM FOR RELIEF

(Mandamus – CAL. CIV. PROC. CODE § 1085)

56. Petitioners reallege and incorporate herein, as though fully set forth, each and every, all and inclusively, paragraphs 1 through 53.

57. Respondent, as Secretary of CDCR, along with each relevant official, employee, and agent of CDCR, has failed to comply, and is failing to comply, with their duties under the laws of the

State of California, including Penal Code section 3008(d) and the California Administrative Procedure Act, Government Code section 11340.

58. Government Code section 11342.2 provides that

> Whenever by the express or implied terms of any statute a state agency has authority to adopt regulations to implement, interpret, make specific or otherwise carry out the provisions of the statute, no regulation adopted is valid or effective unless consistent and not in conflict with the statute and reasonably necessary to effectuate the purpose of the statute.

(Gov't Code § 11342.2.) "Regulations that alter or amend the statute or enlarge or impair its scope are void." (*Envtl. Protection Info. Ctr. v. Dept. of Forestry and Fire Protection* (1996) 43 Cal. App. 4th 1011, 1022.) CDCR abuses its discretion when its regulations purport to implement a statute using criteria other than those intended by the Legislature. (*Sabatasso v. Superior Court* (2008) 167 Cal. App. 4th 971.)

59. Under the standard imposed by Government Code section 11342.2, CDCR's Regulations at Code of Regulations, Title 15, section 3573 ("**Regulations**"), fail this standard and are therefore unlawful for the following reasons:

a. First, the Regulations require that all Registrants participate in a sex offender management program (consisting of mental health treatment sessions and polygraph examinations) for the entire period of parole, which is not consistent with, and which impairs the scope of, Section 3008(d).

b. Second, the Regulations contain no mechanism whereby Registrants are evaluated on a case-by-case basis for termination from the sex offender management program prior to discharge from parole, or otherwise permitted to "complete a sex offender management program" prior to discharge from parole, which is not consistent with, and which impairs the scope of, Section 3008(d).

c. Third, the Regulations are not a lawful exercise of discretion because they require Registrants to participate in a sex offender management program for the entire duration of parole. CDCR has therefore failed and is failing to exercise the discretion that Section 3008(d) requires CDCR to exercise regarding each individual Registrant. Such a failure to exercise discretion is

itself an abuse of discretion. (*E.g.*, *Grimes v. State Dep't of Social Services* (1999) 70 Cal. App. 4th 1065, 1073 ["Courts have interpreted these established rules of judicial review of administrative action to find an abuse of discretion where . . . there is a failure to exercise discretion . . . ."].)

60. Separately, upon information and belief, and as representatives from CDCR have testified under oath, CDCR has implement and continues to implement a policy requiring all Registrants supervised by CDCR on parole to participate in a sex offender management program for the entire duration of parole, and does not allow individual Registrants to complete or be terminated from that program prior to discharge of parole, which is not consistent with, and which impairs the scope of, Section 3008(d).

61. The injuries that Petitioners and the public are suffering as a result of the actions of Respondent and CDCR, are severe, irreparable, and ongoing, and there are no plain, adequate, complete, speedy, or required alternative remedies available to redress the violations of law committed by Respondent and CDCR in this action, nor are there any available, non-futile, or required administrative remedies available to redress the violations of law committed by Respondent and CDCR. Damages are not adequate to protect Petitioners from the continuing effects of Respondent and CDCR's violations of the law and from Respondent and CDCR's failure to carry out their duties under the law. Immediate mandamus relief is necessary to halt and prevent further occurrence of these ongoing unlawful acts and the infliction of irreparable harm to Petitioners and the public.

SECOND CLAIM FOR RELIEF

(Declaratory Judgment – CAL. CIV. PROC. CODE § 1060; CAL. GOV'T CODE § 11350(a))

62. Petitioners reallege and incorporate herein, as though fully set forth, each and every, all and inclusively, paragraphs 1 through 59.

63. The California Administrative Procedure Act declares that, to be effective, regulations "shall be within the scope of authority conferred and in accordance with standards prescribed by other provisions of law," and that "no regulation adopted is valid or effective unless consistent and not in conflict with the statute and reasonably necessary to effectuate the purpose of the statute." (Cal. Gov't Code §§ 11342.1, 11342.2.)

64. California Government Code section 11350(a) states: "Any interested person may obtain a judicial declaration as to the validity of any regulation or order of repeal by bringing an action for declaratory relief in the superior court in accordance with the Code of Civil Procedure. The right to judicial determination shall not be affected by the failure either to petition or to seek reconsideration of a petition filed pursuant to Section 11340.7 before the agency promulgating the regulation or order of repeal. The regulation or order of repeal may be declared to be invalid for a substantial failure to comply with this chapter, or, in the case of an emergency regulation or order of repeal, upon the ground that the facts recited in the finding of emergency prepared pursuant to subdivision (b) of Section 11346.1 do not constitute an emergency within the provisions of Section 11346.1."

65. Petitioners are "interested persons" within the meaning of California Government Code section 11350(a) and therefore have standing to bring this action for declaratory relief.

66. Petitioners seek a declaration that CDCR's Regulations at Code of Regulations, Title 15, section 3573, are void, invalid, and otherwise unlawful on the grounds stated herein.

67. Petitioners seek a declaration that Section 3008(d) prohibits CDCR from retaining, as a matter of policy or practice, all Registrants on parole in a sex offender management program for the entire term of parole.

68. Petitioners seek a declaration that CDCR is required to exercise discretion regarding each individual Registrant's duration of participation in a sex offender management program pursuant to Section 3008(d), and that such exercise of discretion must include the possibility of completion of and termination from that program prior to discharge from parole, after one year in the program.

PRAYER FOR RELIEF

WHEREFORE, Petitioners pray for judgment against Respondent Jeff Macomber, as follows:

A. That the Court issue a peremptory writ of mandate directing Respondent and the California Department of Corrections and Rehabilitation ("**CDCR**") to amend and revise its regulations implementing Penal Code section 3008(d), including its Regulations at Code of Regulations, Title 15, section 3573, to permit Penal Code section 290 Registrants supervised by CDCR on parole to complete and be terminated from the sex

offender management program required by Penal Code section 3008(d) after one year in the program, and prior to discharge from parole.

B. For a judgment declaring that Penal Code section 3008(d) prohibits CDCR from retaining, as a matter of policy or practice, all Registrants in a sex offender management program for the entire term of parole.

C. That Petitioners recover from Respondent all of Petitioners' reasonable attorney fees, costs, and expenses of this litigation pursuant to California Code of Civil Procedure section 1021.5 and other applicable law; and

D. For such other and further relief as the Court deems just and proper.

Dated: July 6, 2023

LAW OFFICE OF JANICE M. BELLUCCI

By: _____
Janice M. Bellucci
Attorney for Petitioners

VERIFICATION

I, Janice M. Bellucci, have read this PETITION FOR WRIT OF MANDATE AND COMPLAINT FOR DECLARATORY RELIEF in the matter of *Alliance for Constitutional Sex Offense Laws, Inc., et al. v. Jeff Macomber*. I am the Executive Director of Petitioner Alliance for Constitutional Sex Offense Laws, Inc. and make this declaration on behalf of that entity. In addition, I am counsel of record for the individual Petitioners in this action. Pursuant to Code of Civil Procedure section 446, I make this verification on behalf of the individual Petitioners because they reside in Los Angeles, Ventura, San Bernardino, San Diego, and Imperial Counties, while my office is in the City of Sacramento. Unless otherwise noted, the facts alleged therein are within my personal knowledge and I know these facts to be true. As to the remainder of the Petition, I am informed, and do believe, that the matters therein are true, and on that ground allege that the matters stated therein are true.

Executed July 6, 2023 in Sacramento, California. I declare under the penalty of perjury under the laws of the State of California that the foregoing is true and correct.

By: _____
Janice M. Bellucci

EXHIBIT A

ENDORSED FILED
SAN MATEO COUNTY

MAR 2 0 2023

Clerk of the Superior Court
By VALERIE HRONIS
DEPUTY CLERK

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN MATEO

In re: FREDERICK DWYER. On Habeas Corpus.	Case No. SC-080355A HC-3020 **ORDER**

FACTS AND ALLEGATIONS

On January 23, 2015, Petitioner pled no contest to one count of Penal Code section (PC §) 286(c)(2) (sodomy by force). He also admitted allegations pursuant to Penal Code section 1192.7(c)(4) and 667.5(c)(4) (admitting that the current offense was serious and violent). On March 10, 2015, the Court denied probation and sentenced Petitioner to the lower term of three years in the California Department of Corrections and Rehabilitation. As a condition of sentence, Petitioner was ordered to register pursuant to the terms of Penal Code § 290.

Petitioner was released on parole in 2017. Among other conditions, he was ordered as a special condition of parole to participate in a sex offender management program as required by Penal Code § 3008(d). In the present writ before the court, Petitioner challenges the continued imposition of the special condition of parole on two grounds: 1) that he has already successfully completed a sex offender management program as required, but is currently being ordered to complete a second program; and 2) he asks the court to exercise its discretion pursuant to Penal

Code § 3008(d) to limit the length of the sex offender management treatment program to a term less than the entire term of his parole.

Petitioner submitted his writ petition on June 22, 2021 in Alameda County Superior Court. The People, through the Attorney General, submitted an informal response requesting denial of the petition on August 20, 2021. Petitioner filed a reply on August 27, 2021. The Honorable Morris Jacobson ordered the writ petition transferred to San Mateo County Superior Court on October 22, 2021, finding that venue was more appropriate in the committing court. This Court issued an order to show cause on January 13, 2022. Respondent filed their return on April 14, 2022, and Petitioner filed a Traverse and Denial on May 11, 2022. This Court issued an order for evidentiary hearing on disputed facts on October 20, 2022. The hearing was continued and ultimately heard on March 9, 2023. Petitioner testified on his own behalf. Respondent presented the testimony of Dr. Cristina Loree, Gilberto Haro, and Daniel Stout. The parties stipulated to the admission of each of their marked exhibits. The Court has considered all filed written pleadings, all admitted exhibits, the testimony of each witness, and the arguments of counsel in rendering the following decision.

DISCUSSION

I. Factual Findings

The facts established at the evidentiary hearing in this matter are largely undisputed. Pursuant to the parties' written stipulation filed March 2, 2023, Petitioner was released on parole on May 30, 2017. He has suffered one parole violation to date in September 2019 for a physical altercation with his wife. The altercation did not result in the filing of a new criminal case, and Petitioner's parole violation resulted in a custodial sanction of six days. Petitioner has otherwise complied with his parole conditions, and has been recommended for early discharge from parole. The Board of Parole Hearings denied the recommended early discharge because Petitioner has not yet served the minimum term of parole required for his commitment offense.

Pursuant to a special condition of parole, Petitioner is required to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program.

The program will require you to agree and sign necessary documents and waivers as well as polygraph examinations, limited to questions about the success of the sex offender treatment program, the crime(s) for which you were convicted, compliance with conditions of parole, sexual history and related criminal behavior past, present, and/or future." (Exhibit 3H). At the time of Petitioner's release on parole, the Division of Adult Parole Operations in Petitioner's area of supervision contracted with a program called Shaping Success. Shaping Success is a California Sex Offender Management Board (CASOMB) approved sex offender management program. The evidence at the hearing established that the Shaping Success program consisted of a "treatment" phase and a "maintenance" phase. During the treatment phase, Petitioner testified that he was initially required to participate in weekly group meetings and individual monthly counseling sessions with Shaping Success. He participated in treatment with Shaping Success for three years. On January 12, 2021, the Shaping Success program issued a "Statement of Successful Treatment Completion" regarding Petitioner's treatment. (Exhibit 9H). The certificate stated, in relevant part on its face, that:

> [t]he term 'successful treatment completion' is defined as having 'demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan' at the time of release from treatment. … Treatment completion does not mean that the client has successfully completed the sex offender management program, or that the client will never reoffend. When active treatment ends, supervision and other elements of the Containment Model may continue. These elements may include, but are not limited to, monitoring, follow-up sessions, aftercare meetings, polygraph testing, risk assessments, and other services which may be required as part of a sex offender management program, i.e., CASOMB Sex Offender Treatment Provider Agency Certification Requirements.

At the completion of the "treatment" phase of Shaping Success, Petitioner was moved into the "maintenance" phase of the program. Petitioner testified that in the "maintenance" phase, he was no longer required to attend any group sessions and his individual sessions were reduced to once a month. He was also required to participate in annual polygraph examinations.

After Petitioner had completed the treatment phase of Shaping Success, the Division of Adult Parole Operations contracted with a new CASOMB provider for sex offender

management – the HOPE program. Petitioner was required to participate in treatment at the HOPE program beginning on March 5, 2021. (Exhibit 6H). Dr. Cristina Loree, Executive Director of Clinical Training and Development at the HOPE Program, testified that HOPE's sex offender management program consists of four phases. When participants first report to the program, the program administers static and dynamic risk assessment tools and obtains a full biopsychosocial history of the participant. Clients are referred to treatment based on their risk assessment scores. The first phase of the program is preparatory for treatment, consisting of seven modules. The second phase of the program, referred to as "core treatment", consists of twenty four modules. In the core treatment phase, sex offenders designated as "high risk" based on their risk assessment scores are required to attend groups twice weekly and once a month individually. "Low risk" offenders participate in groups once weekly and individual sessions once a month. The third phase of the program is "maintenance", consisting of twelve modules. In the maintenance phase, participants have group meetings no less frequently than every other week, and individual sessions no less than quarterly. Completion of all twelve modules is required to complete the maintenance phase, and group sessions are the primary method that the program uses to assess completion of the modules. Upon completion of maintenance, the fourth phase of the program is "aftercare". In aftercare, participants have no group sessions, individual meetings only as needed at the discretion of their clinicians, and twice yearly polygraph examinations. Dr. Loree characterized participation in "aftercare" as voluntary for those no longer on parole, but mandatory for those who have not yet discharged from parole based on the need to maintain a connection to treatment. Dr. Loree testified that she believes a continuous connection to treatment is required for all sex offender parolees based on Penal Code § 3008's provision that the duration of a sex offender management program can be up to the entire term of parole.

When HOPE became the sex offender management provider for Petitioner's region, they devised the following general process for participants who were in the maintenance phase of the Shaping Success program. The participants were required to complete the seven module treatment preparation phase, submit a non-deceptive polygraph examination, and undergo a

risk assessment. Upon completion of those three requirements, participants were then moved into the maintenance phase of the HOPE program. Dr. Loree was unable to describe exactly when Petitioner went through that screening process and was moved to maintenance. Petitioner testified that when he first began with HOPE he was required to attend groups twice weekly in addition to individual sessions for the first three months of his participation in the program. After that, Petitioner testified that he was moved to the maintenance phase of the HOPE program – he currently attends groups once every two weeks and individual sessions quarterly. Dr. Loree confirmed that this is the lowest level of treatment available in HOPE's maintenance phase. Dr. Loree testified that Petitioner has completed four of the twelve maintenance phase modules. His attendance has been "near perfect". His STATIC-99R score is 4, which is categorized as high risk. The STATIC-99R measures risk factors that generally do not change over time with the exception of age at last release from prison. HOPE has administered two dynamic risk assessments to Petitioner – the Stable-2007 and the LS/CMI. His most recent Stable-2007 score is 2, and his most recent LS/CMI score is 6. Both are categorized as low risk. (Exhibit 7). Dr. Loree testified that Petitioner's overall risk assessment, taking both the STATIC-99R score and the dynamic risk assessment scores into account, is average risk – classified as an 8% likelihood of sexual recidivism within 5 years as compared to the overall population of individuals convicted of sexually motivated offenses.

Petitioner is married, has stable housing, and is presently employed. He is the sole wage earner in his household. He has reached journeyman level in his carpenter's union. He is enrolled in community college courses in pursuit of his Associate of Arts degree, with the goal of becoming a construction superintendent. Since the 2019 parole violation, his parole performance has been positive. (Exhibit 5H). He asserts that the increased frequency of group meetings since his transition from the Shaping Success program to the HOPE program is interfering with his ability to meet his employment obligations.

II. Legal Discussion

A. Failure to Exhaust Remedies

The Attorney General argues that this Court should deny the writ because Petitioner has failed to exhaust his administrative remedies before seeking writ relief, citing In re Muszalski (1975) 52 Cal.App.3d 500, 508. While it is true that exhaustion is typically required before a writ of habeas corpus may be granted, there is an exception to the requirement of exhaustion where an aggrieved party "can positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. Petitioner is not "required to pursue a futile remedy." In re Thompson, *supra*, at 263.

In the instant petition, Petitioner filed a grievance on June 11, 2021 prior to filing the instant writ petition. The grievance and response were admitted as Exhibits 7H and 8H. Petitioner's grievance sought to be "placed back on maintenance with the same frequency of contact that I had with Shaping Success provider." (Exhibit 7H.) On July 28, 2021, Petitioner's grievance was denied on the grounds that Penal Code § 3008(d)(2) and Petitioner's special condition of parole required him to participate in sex offender treatment "while under parole supervision", and that HOPE's program staff had stated that Petitioner would be moved to HOPE's maintenance phase with once per week group sessions and monthly individual sessions. (Exhibit 8H.) At the hearing, the Court heard the testimony of Gilberto Haro, presently responsible for overseeing the operations of five parole units within the East Bay where Petitioner is supervised. Mr. Haro participated in the review and denial of Petitioner's grievance. He supervises Petitioner's assigned parole agent. Mr. Haro testified unamibiguously that the treatment provider determined Petitioner's appropriate level of treatment and parole denied Petitioner's grievance in deference to that decision. Mr. Haro further testified that he understands Penal Code § 3008(d)(2) to require a sex offender parolee to participate in a sex offender management program for the entire term of parole.

The Attorney General further presented the testimony of Daniel Stout, who previously supervised the East Bay parole region and is currently assigned to the sex offender unit of parole headquarters. Mr. Stout participates in the drafting and editing process for contracts between CASOMB certified sex offender management program providers and the Division of Adult Parole Operations. He testified that it is the policy of the California Department of

Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge from parole. This was consistent with Dr. Loree's testimony of her understanding that Penal Code § 3008(d)(2) requires sex offender parolees to maintain "some connection to treatment" for the entire period of parole until discharge. Dr. Loree testified that Petitioner would be required to complete all twelve modules of maintenance with the HOPE program before moving to aftercare.

Petitioner's grievance sought admission to "maintenance" with the same level of program contact that had been required at Shaping Success – monthly individual check-ins and no group treatment. The testimony at the evidentiary hearing established that the minimum level of supervision required for "maintenance" at HOPE is participation in group meetings every other week and quarterly individual sessions. The testimony of the parole witnesses established that any appeal of Petitioner's grievance denial would be a futile act – the Division of Adult Parole Operations defers to the treatment provider's determination of the frequency of treatment, and HOPE's minimum maintenance treatment requirement exceeds the amount of programming required by the former provider. In this case, Petitioner can positively state what the administrative agency's decision in his particular case would be. The Court finds that he is not required to exhaust remedies under these circumstances.

B. Mootness/Unripe for Review

The Attorney General further contends that the petition is moot or unripe for review because Petitioner has already "received the relief he requested." Respondent's Return to the Order to Show Cause; Supporting Memorandum of Points and Authorities, p. 13, L. 23. It is apparent from the face of both the grievance and the petition for habeas corpus that Petitioner has not received the relief that he requested. Petitioner requested to be "placed back on maintenance *with the same frequency of contact that I had with Shaping Success provider*". (emphasis added by the Court). The evidence at the hearing amply demonstrated that not only has Petitioner **not** been placed in treatment at the same frequency of contact as previously required, but that the structure of the HOPE program makes it impossible for him to be placed

on the same level of contact. He will either be included in the maintenance phase, which requires group meetings every other week that Shaping Success did not require; or he will eventually transition to aftercare, which includes individual check-ins "as directed" rather than monthly.

Further, Petitioner's writ relief request seeks relief beyond that described in his parole grievance. He seeks a declaration by the Court that he has successfully completed the required sex offender management program defined in Penal Code § 3008, and that the Court order the Department of Corrections and Rehabilitation to cease requiring Petitioner's participation in an "additional" sex offender management program. As discussed above in relation to exhaustion, it is apparent from the testimony offered at the hearing that the Division of Adult Parole Operations takes the position that a "sex offender management program" cannot be completed prior to discharge from parole, and that Petitioner's completion of the treatment phase of the Shaping Success program does not satisfy the obligation for completion of a "sex offender management program". The Attorney General's contention that the petition is moot or unripe lacks merit.

C. Length of Participation in Sex Offender Treatment/Management

1. Habeas Corpus Relief

The fundamental goals of parole are to "'help individuals reintegrate into society as constructive individuals'", "'to end criminal careers through the rehabilitation of those convicted of crime'", and to [help them] become self-supporting." In re Hudson (2006) 14 Cal.App.4th 1, at p. 9, citing In re Stevens (2004) 119 Cal.App.4th 1228 at 1233. A condition of parole will not be held invalid unless it 1) has no relationship to the crime of which the offender was convicted, 2) relates to conduct which is not in itself criminal, and 3) requires or forbids conduct which is not reasonably related to future criminality. Conversely, a condition of parole which requires or forbids conduct which is not itself criminal is valid if that conduct is reasonably related to the crime of which the defendant was convicted or to future criminality. People v. Lent (1975) 15 Cal.3d 481 at 486.

Penal Code § 3008(a) requires the Department of Corrections and Rehabilitation to "ensure that all parolees under active supervision who are deemed to pose a high risk to the public of committing sex crimes, as determined by the State-Authorized Risk Assessment Tool for Sex Offender (SARATSO), … are placed on intensive and specialized parole supervision." Penal Code § 3008(c) further requires the Department to "develop control and containment programming for sex offenders who have been deemed to pose a high risk to the public of committing a sex crime, as determined by the SARATSO, and **shall** require participation in appropriate programming as a condition of parole." (emphasis added by the Court). Penal Code § 3008(d)(2) provides that:

> Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crimes were committed.

Petitioner was convicted of sodomy by force, with the resulting requirement that he register as a sex offender pursuant to Penal Code § 290. The Static-99R is the SARATSO used by the Department to determine risk level, and the hearing evidence establishes that Petitioner's SARATSO score places him in the "high-risk" category. The challenged special condition of parole requiring him to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program" is statutorily required. Applying the Lent test, Petitioner's habeas corpus claim fails. On its face, the challenged special condition of parole is reasonably related both to the crime of which Petitioner was convicted and to his future criminality.

Petitioner's argument that his completion of the "treatment" phase of Shaping Success qualifies as completion of the single sex offender management program required by Penal Code § 3008 is without merit. Petitioner's completion of group counseling with Shaping Success did not result in the termination of his further participation in the program. He was still required to report monthly for individual check-ins and to complete periodic polygraph

testing. His certificate of treatment completion expressly stated that it was not certification that had completed the sex offender management program and that further requirements applied. Petitioner never "completed" a sex offender management program, and the current requirement for participation in the HOPE program is a continuation of the original program with a different provider – not a second program. Petitioner's habeas corpus claim is denied.

2. Court Approval of Length of Participation in Sex Offender Management Program per Penal Code § 3008(d)(2)

Petitioner further asks the Court to exercise the statutory discretion conferred by Penal Code § 3008(d)(2) to set the length of the required sex offender management program in his case as something less than the entire period of parole. The Court grants that request for the following reasons. Penal Code § 3008(d)(2) fixes the length of a sex offender management program as no less than one year and up to the entire period of parole "as determined by the sex offender management professional in consultation with the parole officer and as approved by the court." The evidence in this case demonstrates that the "consultation" contemplated by the statute between the sex offender management professional and parole in this case worked only one way – the program told parole what was required and parole deferred. The HOPE program's determined level of necessary treatment for parolees who had completed Shaping Success's treatment phase was not dependent on individualized criteria. All parolees moving into the HOPE program were required to complete at least two new sets of group counseling – the "pre-treatment" seven module phase, and the "maintenance" twelve module phase – without regard to their individual risk assessments[1], likelihood of re-offense, or history on parole supervision. Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully "complete" a sex offender management treatment program short of being discharged from parole. The discretion

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[1] While Dr. Loree's testimony established that HOPE conducted both static and dynamic risk assessments on intake, the testimony also established that all offenders had to complete the seven module "pre-treatment" phase, and all were placed into the twelve module maintenance phase regardless of score. There was apparently no evaluation as to whether maintenance or aftercare placement was appropriate, and no explanation of how the Shaping Success treatment "curriculum" differed from HOPE's such that HOPE's programming was non-duplicative of that already completed by Shaping Success parolees in the "maintenance" phase.

conferred by statute on the Division of Adult Parole Operations and this CASOMB provider is apparently being exercised in all cases to require participation in a sex offender management program for the entire term of parole, apparently without reference to the individualized performance of each parolee. Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and "up to" the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole.

The Court, in other cases, has certainly encountered parolees for whom public safety demands participation in a sex offender management program for the entire term of parole. Such a requirement may be justified by a parolee's resistance to supervision, refusal to genuinely engage in treatment, refusal to accept responsibility for the commitment offense, and other similar factors. None of those considerations are present in Petitioner's case. The Legislature's guidance on the purpose of parole is as follows:

> [T]he period immediately following incarceration is critical to successful reintegration of the offender into society and to positive citizenship. It is in the interest of public safety for the state to provide for the effective supervision of and surveillance of parolees, including the judicious use of revocation actions, and to provide educational, vocational, family, and personal counseling necessary to assist parolees in the transition between imprisonment and discharge. Penal Code § 3000(a)(1).

In this case, the undisputed evidence establishes that Petitioner is meeting the goals of successful reintegration into society. His prior CASOMB-certified provider certified to parole that he had "demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan" so as to no longer require group counseling. (Exhibit 9H). He has stable housing and employment. He has progressed in his trade and has enrolled in community college to advance his career prospects. He has a stable family. His performance on parole for at least the last three years has been so positive that his supervising parole officer has recommended his complete discharge from parole supervision, and that recommendation was approved for submission to the Board by multiple supervisory layers of parole administration. Petitioner's other special conditions of parole require in relevant part:

continuous GPS monitoring, parole approval of employment, parole approval of residence with accompanying curfew hours, restrictions on travel, substantial restrictions on use of any computer with accompanying search conditions, and participation in both substance abuse and mental health treatment as directed by parole. Petitioner's other parole conditions are sufficient to meet the public safety requirement for effective supervision and surveillance. His continued engagement in the HOPE program does not serve to "assist [Petitioner] in the transition between imprisonment and discharge", since his parole agent and that agent's supervisors have apparently determined that he is ready for a recommended earned discharge. The Court exercises the authority conferred by Penal Code § 3008(d)(2) to disapprove any further participation in a sex offender management program as a condition of Petitioner's parole, and fixes the length of the required sex offender management program as terminating on March 20, 2023.

DISPOSITION

For the foregoing reasons, the Petition for Writ of Habeas Corpus is HEREBY DENIED. Pursuant to the authority granted by Penal Code § 3008(d)(2), the Court disapproves any further participation in a sex offender management program as a condition of parole, and fixes the length of the sex offender management treatment program required by his sentence as terminating on March 20, 2023.

DATED: _____

ELECTRONICALLY SIGNED

Judge Elizabeth M. Hill
Electronically signed.
Redwood City, CA
2023.03.20
12:24:08-07'00'

_____
Elizabeth M. Hill
Judge of the Superior Court of California
San Mateo County